

-
File No.: EXP202203125

-
RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware through a complaint made by the EXCMO. AYUNTAMIENTO DE LA NUCIA of certain facts that could violate legislation regarding data protection.

Specifically, this Agency was informed of the discovery of various documents abandoned in an open field, which contain a large number of personal data with varying degrees of sensitivity, some of which are of special category.

The documents contain personal data of both the citizens of the municipality of La Nucia and individuals affiliated with the Partit Socialista del País Valencià, as well as municipal information obtained by virtue of their status as public officials in the Ayuntamiento and material related to the activities of the party.

The large amount of documentation found, its diverse nature, and the need to analyze its implications regarding personal data protection and information security necessitate the opening of an investigation to clarify the facts and the responsibility for them.

Therefore, on March 16, 2022, the Director of the Spanish Agency for Data Protection urged the Subdirector General for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD) aimed at verifying these facts and their authorship.

SECOND: The Subdirector General for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The complaint was received on February 10, 2022, and it details the discovery of documents containing personal data from that Ayuntamiento in an open field located within the municipal term of Benidorm.

This documentation was found on January 23, 2022, and the following facts are extracted from the received document:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

-
On January 22, 2022, a call was received at the Ayuntamiento of La Nucia from the National Police Corps informing that numerous documents bearing the Ayuntamiento's emblem had been found in an open field. This documentation was deposited in the Ayuntamiento and is being safeguarded by the Local Police.

-
The documentation contained information from the Ayuntamiento mixed with materials and documents from the political party PSOE, which had three councilors in the municipal corporation at the time the complaint was filed.

-
On January 25, 2022, a second inspection of the site was conducted by the Local Police of the

Ayuntamiento of La Nucia, during which more documentation was found.

-

On January 26, 2022, work began on analyzing and inventorying all the documentation found, concluding this work on February 4, 2022. An inventory was obtained listing all the documentation and materials found; this document is attached to the complaint and includes the following fields:

- o A unique identifier for each content found.
- o Details about the type of content.
- o Description of the sensitive information present in the content.
- o Number of individuals affected by this information.
- o Number of documents present in the content.

-

The found documentation includes documents with personal data of varying degrees of sensitivity, some of which are highly sensitive, such as the assignment of a weapon to a Local Police officer, including their name and surname. The documents found date back to 2019 and earlier.

-

The complaint indicates that this documentation could not have been extracted from the headquarters of the Ayuntamiento of La Nucia, but was delivered to members of the municipal corporation belonging to the PSOE of Valencia (PSPV) based on their right to obtain the necessary information for the exercise of their competencies, as provided in Royal Decree 2568/1986, of November 28, which approves the Regulation on the Organization, Functioning, and Legal Regime of Local Entities, with the Ayuntamiento of La Nucia being unrelated to the processing of the found information. It is also indicated in the complaint that the duty of diligent custody has not been fulfilled by the individuals receiving these documents.

-

They assert that the Ayuntamiento of La Nucia is not responsible for the identified security breach.

-

The measures adopted by the Ayuntamiento have been: to report the data breach to the AEPD and to properly safeguard the documentation to prevent unauthorized access. They request instructions from the AEPD on how to proceed with the found documentation.

-

The Ayuntamiento of La Nucia, despite indicating that it is not responsible for this security breach, is considering measures to attempt to prevent the recurrence of these incidents:

- o Specific training for members of the municipal corporation on the processing of personal data and information security, and their inherent responsibilities.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/33

o

Training recycling for all staff of the Town Hall, but focused on work in the different administrative units.

-

The Data Protection Delegate of the Town Hall of La Nucia is (...) A.A.A., registered in the DPD registry of the AEPD.

INVESTIGATED ENTITIES

During the present proceedings, the following entities have been investigated:

SOCIALIST WORKERS' PARTY OF SPAIN with NIF G28477727, located at C/ FERRAZ 68-70 - 28008 MADRID (MADRID)

RESULT OF THE INVESTIGATION PROCEEDINGS

On March 28, 2022, it was decided to request information from the PSOE marked by the following line of investigation:

-

The inventory delivered by the Town Hall of La Nucia containing the found documentation is attached, and confirmation is requested for all those records for which the data controller is the PSOE party itself.

-
The measures established for the destruction of material containing personal data.

-
Reason for the extraction of this documentation from its designated storage location.

-
To know the Record of Processing Activities, the Data Protection Policy, the Risk Analysis, and the Impact Assessment.

On April 5, 2022, a letter was received from the PSOE with entry number REGAGE22e00011508556, requesting an extension of the deadline to respond to the previous request. This request was favorably answered on April 6, 2022, extending the deadline by a maximum of five working days.

On April 28, 2022, a notification of a security breach was received from the PSOE, with entry registration number REGAGE22e00015586967. This breach is related to the documentation found in the vacant lot, from the analysis of this notification the following is extracted:

-
In the description of the breach, they indicate the following: "On January 22, 2022, the National Police of Benidorm located, in a vacant lot in La Nucía (Alicante), documents that may belong to the Municipal Socialist Group or to the PSOE of La Nucía. This AEPD communicated the facts to the PSOE through an information request, dated April 1, 2022. On April 25, 2022, the Data Protection Delegate of the PSOE received a letter from ***POSITION.1 of the Municipal Socialist Group of La Nucía explaining that they had emptied the premises used by the Municipal Group to relocate and that, for this purpose, they had hired a transport and moving company that was to take the documentation to a destruction point. The documentation that they were to transport to a destruction point is what has been found in the vacant lot in question."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/33

-
They state that the breach affects 17 individuals as a result of the loss of confidentiality. They indicate that the affected individuals have not yet been notified but that this will be done by April 29, 2022, at the latest.

-
Regarding the consequences for the affected individuals, they indicate that the individuals will not be affected or may encounter some very limited and reversible inconveniences that they will overcome without any problem (time to re-enter information, inconveniences, irritations, etc.), with a low probability that the damage will materialize.

-
They state that the affected data includes identifying data, DNI, NIE, Passport, and/or any identifying document, payment method data, and data on political opinion.

-
They state that the affected individuals are members of the political party.

-
They state that the breach was detected approximately on April 25, 2022.

-
Among the preventive security measures implemented, they indicate the following:

o
Data protection and security policies.

o

Training in data protection and information security at the appropriate level.

o

Computer systems are kept updated.

o

Incident logging.

o

Periodic audits.

o

Physical and logical access control.

o

Data access levels.

o

Data encryption.

o

Backup.

o

Anonymization.

-

They indicate that this notification is INITIAL.

From the information request made on March 28, 2022, a response was received from the PSOE through several entries between April 26 and 27, 2022, specifically:

-

Entry REGAGE22e00015130070 of April 26, 2022.

-

Entry REGAGE22e00015130601 of April 27, 2022.

-

Entry REGAGE22e00015130995 of April 27, 2022.

-

Entry REGAGE22e00015131441 of April 27, 2022.

-

Entry REGAGE22e00015135404 of April 27, 2022.

-

Entry REGAGE22e00015135707 of April 27, 2022.

-

Entry REGAGE22e00015136181 of April 27, 2022.

Analyzing the content of the entries, the following relevant points are extracted:

1.

The response is signed by the DPD of the PSOE in its Federal scope, B.B.B..

2.

They provide the list of records from the inventory for which the data controller is the PSOE and state that in some cases it is impossible to determine exactly whether it is documentation under their responsibility or not. From this list, it is concluded that the PSOE is responsible for at least the following leaked personal documentation:

a.

Municipal Register due to the 2019 elections.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/33

b. List of cancellations in PSOE La Nucia due to returned receipts with personal data of members.

c. Various lists with the data of party members.

d. Bank account numbers of PSOE La Nucia members.

- e. Letter from PSOE to multiple supporters with their personal data.
- f. Membership forms for the party with personal data and photocopies of ID cards.
- g. Personal data of members of electoral tables and census from various electoral processes.

3. They affirm that neither PSOE Federal nor PSPV-PSOE had any knowledge of the possible extraction of the documentation found, nor had they received any notification from the Agrupación Socialista La Nucia.

4. They state that PSOE has more than 3000 groups as a way to organize at the local level, and that the local data protection officers according to PSOE's internal regulations are the Secretaries of Organization, individuals who in many cases perform their duties altruistically and voluntarily. They assert that the federal, regional, and provincial organization provides these officers with very specific instructions and actions that guarantee the protection of personal data, and that, given the extensive presence and the fact that these positions are assumed voluntarily and without compensation, it is very difficult to control the diligence with which they act despite all efforts.

5. In order to clarify what happened, the DPD sent letters to the Municipal Socialist Group of La Nucía, to PSOE of the Province of Alicante, and to PSPV-PSOE. Both these communications and their responses are documented, and from their analysis the following is extracted:

a. Regarding the response to the letter from the Municipal Socialist Group of La Nucía:

i. Responds ***POSITION.1, C.C.C., expressing surprise, shock, distress, and displeasure. They state that in October 2021 they were forced to terminate the lease of the premises that served as the headquarters of the Group. They contacted a moving company with which they had conversations via WhatsApp (they claim this can be considered a verbal contract) agreeing to remove furniture and other items to a recycling and green point; in these initial conversations, it was not agreed to transfer the existing documentation in the premises because they thought they would take care of its destruction themselves. On October 25, the first move was made, but only of furniture and items.

ii. They state that "due to the impossibility of removing all the boxes from the premises containing the documentation themselves," they decided to contact the moving company again and informed them that this time it involved papers with sensitive documentation, and that it was essential to take them to a destruction point. They agreed that the transfer would be to the ecopark of La Nucía or that of San Vicente del Raspeig. The transfer was carried out by the moving company on December 30, 2021. They trusted that the company had transferred the documentation to the ecopark (there is no record of subsequent confirmation of destruction by them).

iii. As ***POSITION.1 of the Socialist Group states verbatim: "I never thought that after our verbal contract and my insistence on where I wanted to leave everything that was inside the premises, it would end up in an empty lot."

iv. The moving company was called "Portes Y Mudanzas Marina Baixa," however, there are no records of this business name in AXESOR.

The ***POSITION.1 of the Municipal Socialist Group of La Nucía verbally agreed to a moving contract for the transfer of documentation from their headquarters to the Ecopark, that is, they signed a transport contract NOT a data processing contract for the purging or destruction of the documentation. There is not even evidence that the destruction of the documentation was arranged at the Ecopark. The moving contract has a special regulation within the transport contract contained in Chapter VIII of Law 15/2009, of November 11, on the contract for the land transport of goods (LCTTM), Articles 71 and following.

Article 71 of the LCTTM establishes that "By the moving contract, the carrier is obliged to transport furniture, household goods, items, and their complements from or to homes, business premises, or workplaces, in addition to carrying out the loading, unloading, and transfer operations of the objects to be transported from where they are located to place them in the destination home, premises, or workplace. The rest of the operations, such as preparation, assembly or disassembly, packaging, unpacking, and other complementary tasks, will be at the contractual discretion of the contracting parties."

Article 76 of the LCTTM determines the responsibilities of the carrier in case of breach of the transport contract: The carrier's liability for damage or loss of the transported goods may not exceed twenty

times the Public Indicator of Multiple Effects/day for each cubic meter of loading space necessary for the fulfillment of the contract.

b. Regarding the response to the letter from the Secretary of Organization of PSOE of the province of Alicante, it is noted:

i. They state that they were not aware of what had happened.

ii. They state that the technical and organizational measures at the provincial level for the protection of personal data are:

(...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/33

c. In relation to the response to the letter from the Secretary of Organization of the PSOE in Valencia, the following is extracted:

iii.

It states that neither the Secretary of Organization nor the Management of the PSPV were aware of what had happened.

iv.

It states that the PSPV-PSOE, within the scope of its competence, has implemented the following technical and organizational measures for the protection of personal data:

(...)

1.

They state that the PSOE has a Data Protection Manual, which is mandatory for any individual who accesses personal data, whether they have a contractual link, volunteer status, or any other type of collaboration with the party. This manual is provided as an annex to the response to the request, and the following relevant points are extracted from the analysis of this manual:

(...)

2.

They state that, as proof of diligent action by the PSOE, a communication was sent on July 2, 2018, addressed to the Secretaries of Autonomous, Provincial, Insular, Municipal, and District Organizations, with all the rules and corporate norms that should be established. This communication is attached to us. From its analysis, the following points are highlighted:

(...)

3.

They state that in the same month of July 2018, a communication was also sent regarding the protocol for exercising rights contemplated by the GDPR.

4.

They state that, after the 2019 elections, a communication was sent containing the procedure that should be followed for the destruction of electoral rolls (including those that may have been from previous electoral processes and that had not been destroyed). From the analysis of this communication, the following points are extracted:

(...). (This was not complied with by the Municipal Socialist Group of La Nucia).

5.

They state that in August 2021, a new communication was also sent to the Secretaries of Autonomous and Provincial Organizations informing them of the need to update the Privacy Policy and Legal Notice of all their websites, with the updated versions that should be published attached to this communication.

6.

They state that all these previous communications were mandatory, and that the PSOE has other security measures to safeguard documentation containing personal data, including:

(...).

7.

They state that the federal PSOE has a tool that performs unified management of personal data, allowing for deletion or obfuscation along with an action auditing system.

8.

They state that, following the reported events, they convened the Data Protection Committee on April 18, 2022, and attach the minutes of that meeting. From the analysis of this, the following is extracted:

a.

From this meeting, it is concluded to notify the AEPD of the breach on a precautionary basis (this notification is made on April 28, 2022).

b.

From this meeting, it is concluded to communicate the facts to the members of La Nucia, given the difficulty in specifying which individuals may have been affected.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/33

c. Send a specific communication to all executive committees as a reminder regarding data protection, as well as the measures to be followed for the destruction of material containing personal data.

9. They assert that with all the above, the PSOE demonstrates that it ensures compliance with data protection regulations, as well as imposes that the same is done in its various territorial structures.

10. They provide a Record of Processing Activities (RAT) that contains details of the following processing activities: Job Applicants, Employees, Members, Supporters, Voter Rolls/Primaries, Suppliers, Contacts, Mailing, Sending electoral propaganda, and PSOE Store.

11. They provide the appointment of the DPD to this Agency.

On June 13, 2022, a letter was received from the Data Protection Delegate of the PSOE with additional information regarding the security breach initially reported on April 28, 2022. From the analysis of this extension, the following is extracted:

1. In the initial notification of April 28, 2022, it was communicated that the breach had affected 17 individuals who had not yet been notified, but that notification would occur no later than April 29, 2022. In this new extension, they inform us that such notification was finally carried out on May 12, 2022, via certified postal mail, attaching the letter sent to the members of the La Nucía Socialist Group and providing the proof of mailing from Correos.

2. They assert that on June 10, 2022, a reminder communication regarding the party's data protection policies was sent again to all Secretaries of Organization from the different territorial areas of the PSOE, as well as the measures they had to follow for the destruction of physical and/or electronic material containing personal data. They substantiate this fact by providing the content of the communication. From the analysis of this content, the following is extracted:

(...)

On August 18, 2022, the following information requests were decided:

I. Request to Federal PSOE marked by the following line of investigation:

- To know how the Provincial Secretary of Organization responsible for data protection communicated the instructions to the local groups on how they should proceed with the destruction of documentation containing personal data.
- To know the reason why the breach was communicated only to 17 affected individuals, possibly existing many more affected in the documentation found.
- To substantiate the document destruction policy they claimed to have in the Province of Alicante and the Valencian Community, as well as any existing contracts with certified companies.
- To substantiate the verifications existing regarding the destruction of the voter rolls by the Secretaries of Organization responsible for data protection (verifications that were mandatory according to the party's internal regulations).

II. Request to C.C.C., ***POSITION.1 of the Socialist Municipal Group of the La Nucía City Council, marked by the following line of investigation:

- To know the possible instructions received from the La Nucía City Council regarding data protection.

- To know the instructions received from the Provincial Secretary of Organization regarding data protection.

- To know the reason why there was documentation that the councilors had in the exercise of their duties, at a location different from that assigned by the City Council.

On September 2, 2022, a response was received to the information request from C.C.C., responsible for the Socialist Municipal Group in La Nucía; from the analysis of this response, the following is extracted:

1. They assert that they have never received any instruction or protocol regarding data protection from the La Nucía City Council, neither in their capacity as councilor nor as ***POSITION.1 of the Socialist Municipal Group.

2. They assert that they have received several communications from Federal PSOE regarding data protection; these communications are the same as those accredited by Federal PSOE in response to our request and as evidence of diligent action, specifically they substantiate the following:

a. Two communications received in July 2018 with the following relevant information:

i. Instructions regarding the documentation provided by members.

ii. Instructions regarding the mandatory use of the internal tool "Portal Agrupaciones" for the management of members.

b. A communication received in August 2018 with the texts of the Privacy Policy, Legal Notice, and Cookie Policy to update the websites under their management.

c. A communication received in December 2019 regarding the need to destroy the voter rolls after electoral processes and the prohibition of depositing them in the usual waste collection means. This communication also recommends signing documents certifying the delivery of the voter rolls to those who were given them in paper format as part of the electoral process.

d. A communication received in June 2022 (at which point they were already aware of the security breach suffered) reminding:

i. The prohibition of creating voter rolls except for the official one sent by Federal PSOE.

ii. Reminding the need for the destruction of the voter rolls after electoral processes using shredders or certified companies, with this destruction needing to be verified by the Provincial Secretaries of Organization. The use of the voter roll is prohibited once the electoral process has concluded.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/33

iii.

Recalling that in the transfers of locations where the destruction of documents, equipment, or supports containing personal data is necessary, once the legal retention periods have concluded, it must be carried out using shredding machines or certified companies, and the destruction must be verified by the Secretaries of Organization.

On September 13, 2022, and with entry registration number REGAGE22e00039623574, a response was received from the Federal PSOE to our previous request for information, from which the following is extracted:

1. They affirm that all communications and instructions regarding the protection of personal data are sent from the Federal Organization Secretariat via email and the internal tool Portal de Agrupaciones, directed to all territorial Secretaries of Organization responsible for data protection (Autonomous, Provincial, Municipal, and District), and that "this way of proceeding makes sense since many of these Secretaries of Organization are colleagues who voluntarily assume the functions altruistically and at the federal level there is greater professionalism."

2. They affirm that, in light of the events in La Nucía, a new meeting of the PSOE Data Protection Committee has been convened on September 28, 2022, to assess the implementation of greater control measures for data protection policies at the regional level, as well as new training modules for the Secretaries of Organization. Furthermore, a thorough investigation of the events in La Nucía will be conducted to analyze the reasons for possible non-compliance or ignorance of data protection

guidelines by members of the organization, in order to adopt other organizational measures and consider reporting what happened to the Federal Executive Commission in case the events could lead to the initiation of disciplinary proceedings.

3. Regarding our request for clarification on why the breach was communicated only to 17 affected individuals:

a. They affirm that the documentation found came from the emptying of a premises shared by the local party group with the Municipal Socialist Group of the La Nucía City Council, and whose members had dual status, and that due to the information contained in the inventory provided, it was not possible to determine in some cases whether the documentation is the responsibility of the PSOE or the City Council, and that “in order not to cause unnecessary alarm, only the 17 members of the Local PSOE Group in La Nucía have been notified,” being the only individuals they are certain are the responsibility of the PSOE.

b. On the other hand, they affirm that, since the documentation was found by the Local Police of the municipality and a significant amount of time had passed since the discovery, they consider that the breach does NOT pose a high risk to the rights and freedoms of the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/33

c. They assert that this measure has been adopted without prejudice to any other that this Agency may consider.

4. In relation to our request for them to provide details of the document destruction policy, as well as any existing contracts with certified companies, they respond:

a. They assert that in the Valencian Community, the company Servicios Documentales Avanzados S.L. has been contracted for the provision of custody, destruction, and digitization services for documentation, and they provide an Annex of the contract detailing the procedure to be followed. From the analysis of this document, it is confirmed that:

i. The complete copy of the contract is not provided; only an annex titled “Annex II. General Conditions of Custody and Destruction” is attached, which contains the steps to be taken for the provision of the service. In this annex, the name of the PSOE does not appear anywhere as a contracting party.

ii. At the end of this annex, it seems that additional information is deliberately covered with a square or white label superimposed, which obscures the information contained at the end of the document.

5. In relation to our request for them to confirm whether there was ever verification and monitoring of the destruction of the paper registers by the Organization Secretaries in the province of Alicante and the Valencian Community, as required by the internal regulations of the party, they assert:

a. That the registers were delivered to the regional Organization Secretaries for distribution to the groups, which in turn deliver them to the scrutineers and proxies, who are voluntary individuals that may not be party members and whose role is to ensure the proper conduct of elections and vote counting. The day after the elections, all folders in their possession are collected and following the reverse process, they must ultimately be destroyed by the provincial secretaries. However, they assert that once the registers were destroyed, the documents of the delivery chain were also destroyed without any digital record remaining, so there is no formal evidence beyond the verbal statement of the legal representatives of the Provincial Electoral Committee of Alicante regarding their total destruction in the various electoral processes, also starting from 2019.

6. They inform us that in the next meeting of the Data Protection Committee, the implementation of formulas for greater monitoring and control of the custody and destruction chain of the registers will be evaluated, with a higher level of professionalization and training for the upcoming electoral processes, and implementing verification systems at the federal level to complement what currently exists.

On October 26, 2022, the inspector communicated via email to the Data Protection Delegate of the PSOE requesting clarification of the contract signed with the document destruction company “Servicios.

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
12/33

“Documentales Avanzados S.L” (eSEDEA), specifically, it is requested that they resend the complete copy of the contract via official electronic registration, as only an annex was available and it was incomplete.

On November 3, 2022, a response was received via email from the DPD of the PSOE to our previous email, stating that the documentation had been requested from the PSOE of Valencia and that they would provide it through the official registry of the Agency in the coming days. On November 11, 2022, the requested documentation was received, with entry registration number REGAGE22e00051208708, from its analysis the following is extracted:

1.

The complete scanned contract is provided. It is confirmed that the part that was deliberately covered in Annex II (the reason for which clarification was requested from the DPD) referred to the beginning of the section “Annex III: Confidentiality of the Contract,” in which reference was made to the old data protection regulations, specifically the following text appears: “In compliance with the provisions of Organic Law 15/1999 and RD 1720/2007, it is the intention of both parties to establish obligations and responsibilities that correspond to each of them in the processing of personal data in accordance with the following points: ...”

2.

An addendum to the previous contract is provided, dated March 2, 2022, with which both parties agree to replace this “Annex III: Confidentiality Contract” in accordance with current data protection regulations and including the sections:

a.

The object of the contract is the services of custody, destruction, and digitization of documentation, specifically it is specified:

i.

That the documentation is deposited in containers and sent by the PSOE to eSEDEA, which subsequently inventories the documentation indicating Department, Reference, Year of creation, Year of destruction, and the information of the content.

ii.

That upon request from the PSOE, eSEDEA may return the containers to the PSOE and, upon new request, reintegrate them to their location in the custody center.

iii.

That upon request from the PSOE, eSEDEA will destroy any documentation of the client under its custody, providing a certificate of destruction if requested by the PSOE.

b.

The types of information affected by the contract include:

i.

Employees: Identifying data, marital status, birth, sex, nationality, health data (sick leave, degree of disability...excluding diagnoses), union affiliation, permissions, and authorizations.

ii.

Affiliates/Members: Identifying data, marital status, sex, nationality, birth, mother tongue, academic and professional data, union affiliation and membership in other associations, employment details, banking data, financial transactions.

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/33

iii.

Supporters: Identifying data, marital status, date of birth, gender, nationality, mother tongue, academic

and professional data, membership in associations.

THIRD: On March 2, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the Socialist Municipal Group of La Nucia, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, and for the alleged infringements of Articles 32, 34, and 28 of the GDPR, classified under Article 83.4 of the GDPR.

The initiation agreement was sent, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), via electronic notification, being received on March 6, 2023, as stated in the certificate included in the file.

FOURTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the Socialist Municipal Group of La Nucia submitted a written statement of allegations in which, in summary, it regrets the error made with the emptying of the Municipal Group's headquarters and the malpractice of the contracted company that deposited documentation containing personal data in an open field, which has led this Data Protection Agency to agree to initiate a sanctioning file.

On the other hand, it expresses its surprise at the fact that the Honorable City Council of La Nucia filed a complaint with this Data Protection Agency and requested the necessary information without, at any time, contacting the Municipal Group in the City Council, without having been able to access the documentation and without knowing what custody measures were applied to this documentation. It provides a report issued by the Data Protection Delegate of the Spanish Socialist Workers' Party, which highlights that the organization has security measures that, if complied with, would have prevented the unfortunate situation that occurred. However, it has been evidenced that regarding Municipal Groups in institutions, it is mandatory to carry out a series of actions to prevent these situations, without prejudice to the measures and responsibilities of the Local Corporations, of which the Municipal Groups are a part.

It states that, given the decentralization of the political formation, the verification of the destruction of electoral rolls was delegated to the territory, as well as the implementation of certain security measures that have been indicated by the different territorial areas of the organization, among which is a current contract with an entity specialized in the secure destruction of documentation.

It indicates that, however, little can be done with those who ignore the established measures other than, once the situation is detected, in their case, instruct disciplinary procedures in accordance with internal rules, as agreed in the meeting of the Data Protection Committee of the PSOE on September 28, 2022, and improve verification and information systems, especially regarding municipal groups, despite their unique nature, without prejudice, in any case, to

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
14/33

consider the good faith of the colleagues, as has been detected in this case, in which a regrettable error was evidenced by trusting in the actions of a company that was not suitable and the deposit of the documentation in a "clean point" location that, despite a possible appearance, being a municipally designated place, does not meet the necessary requirements for it, and they should have proceeded to the secure and certified destruction.

That is to say, this situation occurred despite the organizational and security measures that had been established in the organization, without any evidence that third parties other than the Police, who deposited this information in the Town Hall of La Nucía, accessed the data, so the confidentiality of the data would not have been compromised, fortunately.

It is understood that in good faith and with the utmost diligence, the provisions of Articles 33 and 34 of the GDPR were complied with regarding the management of the breach and that the confidentiality of

the data has not been compromised as there is no evidence that any third party accessed the data, considering at this moment that it is unlikely that such a security breach constitutes a risk to the rights and freedoms of individuals, which is why they did not proceed to expand the communication of the breach made.

Regarding the possible violation of Article 28 of the GDPR, it is stated that this situation occurred despite the organizational and security measures that had been established in the organization. Thus, as is evidenced in the reference file, there is a valid contract with the company Servicios Documentales Avanzados S.L for the provision of custody, destruction, and digitization services of documentation by the PSPV-PSOE (territorial scope of the PSOE in the Valencian Community); however, as noted, erroneously and mistakenly, although in good faith, the Municipal Socialist Group of La Nucía opted to commission a moving company that committed to a series of obligations that it later did not fulfill and improperly deposited the documentation in an open field.

Despite the above, it wishes to inform this AEPD of new measures that have been adopted or are being worked on to reinforce compliance in the organization regarding the protection of personal data. FIFTH: On April 28, 2023, a resolution proposal was made in which a response was given to the allegations raised, proposing the imposition of a warning sanction for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR, and for the alleged infringements of Articles 32 of the GDPR, 34 of the GDPR, and 28 of the GDPR, classified in Article 83.4 of the GDPR, and a period of 10 days was granted for the submission of allegations.

There is no record of the submission of allegations against the resolution proposal.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/33

FIRST: It is established that the La Nucia Socialist Municipal Group hired a moving and transport company for the transfer of documentation from its headquarters to the Ecopark, and that the contract with this company was made through WhatsApp conversations.

SECOND: On February 10, 2022, the AEPD became aware, through a complaint made by the EXCMO. AYUNTAMIENTO DE LA NUCIA, of the discovery of various documents abandoned in an open field, which contained a large number of personal data, some of special category.

THIRD: Among the documentation found, the existence of at least the following types of personal information for which the PSOE is responsible is confirmed:

- Voter rolls from the following electoral processes: Municipal elections of 2007, 2011, and 2019; European elections of 2004, 2009, and 2014; General elections of 2015, 2016, and 2019.
- Membership records with ID numbers and other personal data.
- Photocopies of members' ID cards.
- Membership fee records with bank account numbers.

FOURTH: Although the PSOE sent a statement containing the procedure that should be followed for the destruction of the electoral rolls (including those that may pertain to previous electoral processes and that had not been destroyed), it is proven that the Socialist Municipal Group failed to comply with the obligation to destroy the electoral rolls used in all possible formats.

FIFTH: The La Nucia Socialist Municipal Group has not communicated the security breach and its possible adverse effects to the affected individuals, nor has it publicly warned about the detected incident.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/33

In the present case, we proceed to examine the complaint filed by the Honorable City Council of La Nucia, through which this Agency is informed of the discovery of various documents abandoned in an open area, containing a large number of personal data of both the citizens of the municipality of La Nucia and individuals affiliated with the Socialist Party of the Valencian Country, as well as municipal information obtained by virtue of the public office held by the City Council and material pertaining to the activities of the party.

The complaint indicates that this documentation could not have been extracted from the City Council's headquarters, but was delivered to members of the municipal corporation belonging to the PSPV (Socialist Party of the Valencian Country) based on their right to obtain the necessary information for the exercise of their competencies, as established by Royal Decree 2568/1986, of November 28, which approves the Regulation on the Organization, Operation, and Legal Regime of Local Entities, with the City Council of La Nucia being unrelated to the processing of the information found.

Furthermore, it is indicated that the duty of diligent custody has not been fulfilled by the individuals receiving said documents.

It is, therefore, pertinent to analyze whether the processing of personal data carried out is in accordance with the provisions established in the GDPR.

For the purposes of the GDPR, the data controller according to Article 4.7 is:

"the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States."

In this regard, the PSOE states that it has more than 3000 Groups as a way of organizing at the local level, and that the local data protection officers according to the internal rules of the PSOE are the secretaries of Organization, individuals who in many cases perform their duties altruistically and voluntarily. From the federal, regional, and provincial organization, these officers are given very specific instructions and actions that guarantee the protection of personal data, and given the extensive presence and the fact that these positions are assumed free of charge and altruistically, it is very difficult to control the diligence with which they act, despite all efforts.

Article 4.2 of the GDPR also defines:

"'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction."

Translating these considerations to the specific case being examined, the Municipal Socialist Group of the City Council of La Nucia carries out this activity in its capacity as res...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/33

data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

“data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter security breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to the unauthorized communication or access to such data.”

From the actions taken, it has been established that the breach had as its entry vector the destruction by the Socialist Municipal Group of La Nucia of documentation containing sensitive data (which included, among others, censuses and lists of members) using inadequate methods, which resulted in the abandonment in an open area of a large volume of documentation not destroyed, containing special category data.

Among the documentation found, the existence of at least the following types of personal information for which the PSOE is responsible is confirmed: Censuses from the following electoral processes: Municipal Elections of 2007, 2011, and 2019, European Elections of 2004, 2009, and 2014, General Elections of 2015, 2016, 2019, Membership records with ID numbers and other personal data, Photocopies of members' ID cards, Membership fee records with bank account numbers.

Furthermore, among the documents found, there is one dated back to 1989. There is no justification for why all this documentation had been kept for so long.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR. In turn, the security of personal data is regulated in Articles 32 and 34 of the GDPR, which govern the security of processing and the communication of a personal data security breach to the affected individual, respectively. Article 28 of the GDPR refers to the figure of the processor.

III

Allegations made regarding the Initiation Agreement

In response to the allegations presented by the Socialist Municipal Group La Nucia, the following should be noted:

Firstly, the municipal group regrets the error made with the emptying of the headquarters of the Municipal Group and the malpractice of the contracted company that deposited it at C/ Jorge Juan, 6
www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/33

an open area, documentation that contained personal data which has led this Agency for Data Protection to agree to initiate a sanctioning procedure.

In this regard, it should be noted that security measures must be adopted in consideration of each and every risk present in the processing of personal data, including the human factor among them.

On the other hand, in response to the report issued by the Data Protection Officer of the Spanish Socialist Workers' Party, which the Municipal Socialist Group of La Nucia has attached to its written allegations regarding the initiation agreement, the following should be noted:

Regarding the fact that the situation occurred despite the organizational and security measures that had been established within the organization, and without evidence that third parties other than the Police, which deposited the information, accessed the data put at risk, it should be pointed out that what is relevant to understand the breach of confidentiality is the risk that the information was completely at the free disposal of unauthorized third parties. The fact that there is no record of subsequent use of the data does not negate the real risk that unauthorized access may have occurred, which is particularly serious due to the type of personal data contained in the documentation that was abandoned in a publicly accessible space.

In this sense, it is important to note that at least the following types of personal information under the responsibility of the PSOE were subject to loss of confidentiality: Voter rolls from the following electoral processes: Municipal elections of 2007, 2011, and 2019, European elections of 2004, 2009, and 2014, General elections of 2015, 2016, and 2019, Membership records with ID numbers and other personal data, Photocopies of members' ID cards, Membership fee records with bank account numbers.

Therefore, it cannot be defended in any way that there is no infringement of Article 5.1.f) of the GDPR, since, due to the lack of adequate security measures, personal data was accessible.

The aforementioned report points out that there are security measures in the organization that, if complied with, would have prevented the unfortunate situation that occurred, and that little can be done with those who ignore the established measures other than, once the situation is detected, if applicable, instruct disciplinary procedures in accordance with internal regulations and improve verification and information systems, especially regarding municipal groups.

In contrast, it should be noted that the appearance of a large volume of documentation containing special category data in an open area without destruction demonstrates that the data controller did not exercise the necessary diligence to effectively implement security measures, as they neglected the fate of the documents. Just as the Police recovered them, third parties could have accessed them.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/33

From all of this, a lack of due diligence is deduced both in the compliance with the established security measures and in the supervision or verification of their observance and/or suitability. In fact, a statement was sent by the PSOE containing the procedure that should be followed for the destruction of the electoral rolls (including those that may relate to previous electoral processes and that had not been destroyed), which was disregarded by the Socialist Municipal Group in its obligation to destroy the electoral rolls used in all possible formats.

In this regard, it is noted that Article 32 of the GDPR is infringed both if the data controller does not adopt appropriate technical and organizational measures to ensure the security of personal data, and if, once established, these measures are not observed.

It is understood that the security measures implemented were insufficient and susceptible to improvement; this is evidenced by the assertion that the mechanisms are improvable and, in fact, some actions have already been related for their improvement, such as hiring an external consulting firm in data protection, among others.

Regarding compliance with Articles 33 and 34 of the GDPR concerning breach management and the confidentiality of data not being compromised due to the lack of evidence that any third party accessed the data, it is considered at this moment that it is unlikely that such a security breach constitutes a risk to the rights and freedoms of individuals, which is why they did not proceed to expand the communication of the breach made, as indicated in the Initiation Agreement of the current sanctioning procedure, based on the number of affected subjects and the categories of data subject to access, it is considered that there is a high risk to the rights and freedoms of individuals and, consequently, the breach should have been communicated to all affected individuals.

The serious consequences that the leakage of electoral process rolls can have on the rights and freedoms of those affected must be taken into account: Municipal Elections of 2007, 2011, and 2019, European Elections of 2004, 2009, and 2014, General Elections of 2015, 2016, 2019, Membership records with ID numbers and other personal data, Photocopies of ID cards of members, Membership fee records with bank account numbers.

In this regard, the aforementioned Article 34 establishes that when it is likely that the breach of the security of personal data entails a high risk to the rights and freedoms of individuals, the data controller shall communicate it to the affected party without undue delay.

In relation to the possible violation of Article 28 of the GDPR, it states that “this situation occurred despite the organizational and security measures that had been established in the organization. Thus, as evidenced in the reference file, the PSPV-PSOE (territorial scope of the PSOE in the Valencian

Community) has a valid contract with the company Servicios Documentales Avanzados S.L for the provision of custody, destruction, and digitization services of documentation; however, as has been pointed out, erroneously and mistakenly, albeit in good faith, the Socialist Municipal Group opted for..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/33

of La Nucía for commissioning a moving company that committed to a series of obligations that it later failed to fulfill and improperly deposited the documentation in an open field."

Well, the actions carried out have demonstrated that a moving and transport company was contracted to transfer the documentation from the headquarters of the Municipal Socialist Group La Nucia to the Ecopark and that the hiring of this company was done through WhatsApp conversations. That is to say, no type of data processing agreement was signed for the destruction or purging of the documentation, but it was trusted that the moving company would transfer the documentation to the Ecopark, although there is no record of subsequent confirmation of the destruction by them. The moving contract is not a data processing agreement but a type of transport contract whose object, definition, nature, and responsibilities are legally regulated.

Finally, regarding the new measures that have been adopted or are being worked on to strengthen compliance with data protection regulations, although they reflect positive conduct, they do not alter the established facts. Consequently, the allegations must be dismissed, emphasizing that the arguments presented do not undermine the essential content of the infringements declared to have been committed nor do they constitute sufficient justification or exculpation.

IV

Unfulfilled obligation. Duty of confidentiality.

Article 5.1.f) of the GDPR states the following:

"Article 5 Principles relating to processing:

1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In relation to this principle, Recital 39 of the aforementioned GDPR states that:

"[...] Personal data must be processed in a manner that ensures adequate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and of the equipment used for processing."

The documentation in the file provides clear indications that the Municipal Socialist Group La Nucia violated Article 5.1 of the GDPR, principles relating to processing, as a security breach occurred that had as its entry vector the destruction by the Municipal Group of documentation containing sensitive data (which included, among others, census and lists of members) using inadequate methods for this purpose, which resulted in the abandonment in an open field of a large volume of documentation not destroyed, containing special category data, allowing access by unauthorized third parties, thus violating the principles of integrity and confidentiality, both established in Article 5.1.f) of the GDPR. Consequently, it is considered that the established facts constitute an infringement, attributable to the Municipal Socialist Group La Nucia, for violation of Article 5.1.f) of the GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR.

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a limitation period of three years:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Article 32 of the GDPR

Regarding the application of data protection regulations to the case presented, it should be noted that the GDPR, in its Article 32, requires data controllers to adopt the necessary security measures to ensure that processing is compliant with current regulations, as well as to ensure that any person acting under the authority of the controller or the processor and having access to personal data can only process them following the instructions of the controller.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/33

Article 32 of the GDPR establishes the following regarding the security of processing:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data."

Furthermore, Recital (74) of the GDPR states: "The responsibility of the controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons."

Defining and establishing control and security measures is a fundamental task that must be carried out in accordance with the particularities of the processing activities and based on the risks involved.

From the actions taken, it has been confirmed that the breach had as its entry vector the destruction by the Socialist Municipal Group of La Nucia of documentation containing sensitive data (which included, among others, censuses and lists of members) using inappropriate methods for this purpose.

Among the documentation found, the existence of at least the following types of personal information

for which the PSOE is responsible has been confirmed: Censuses from the following electoral processes: Municipal Elections of 2007, 2011, and 2019, European Elections of 2004, 2009, and 2014, General Elections of 2015, 2016, 2019, Membership records with ID numbers and other personal data, Photocopies of members' ID cards, Membership fee records with bank account numbers.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/33

It is established in this case that there has been a breach of the technical and organizational measures that the municipal group should have in place for the phase of processing the destruction of paper data. In a case such as the one analyzed, these measures must adhere to minimum standards that ensure the effectiveness of the process, especially given the large volume of documentation containing special category data, making it essential to take them to a destruction point.

It is documented that the PSPV-PSOE had a processing agreement with a company for the custody, destruction, and digitization of information; however, this contract was not utilized for the destruction of the documentation found, which has prompted the investigative actions.

In this case, it was relied upon that the moving and transport company would transfer the documentation to the ecopark, although there is no record of subsequent confirmation of the destruction by this company. No type of processing agreement for the destruction or purging of the documentation has been signed, nor is there a certificate of destruction. When destroying confidential documentation, it is very important to ensure that it has been destroyed securely and in accordance with legal requirements, which is why companies must provide every client with a certificate of document destruction that certifies it.

However, the appearance of a large volume of documentation containing special category data in an open field without destruction highlights that the data controller did not exercise the necessary diligence to implement security measures, as they neglected the fate of the documents. Just as the Police recovered them, third parties could have accessed them, although it is not established that this occurred.

This possibility poses a risk that must be weighed when processing certain special category data, as indicated by Article 9 of the GDPR, and increases the requirement for the level of protection concerning the security and safeguarding of the confidentiality of this category of data.

This risk must be taken into account by the data controller and, based on this, establish measures that would have prevented the loss of control over the data by the data controller and, therefore, by the data subjects who provided them. That is to say, the affected individuals in that locality have been deprived of control over their personal data, which could have led to the public disclosure of a certain political position or ideology, the public revelation of which may not have been consented to by its owner.

The GDPR also requires not only the design of the necessary technical and organizational means but also their proper implementation and appropriate use, so that they will also be liable for the lack of diligence in their use, understood as reasonable diligence considering the circumstances of the case, encompassing the assessment of the impact of an incident on personal data, regardless of whether the processing is carried out automatically or manually, or whether the incidents are accidental, both human and associated with natural events.

Incident management is a process that, with varying degrees of maturity, already...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/33

must be part of the culture of those responsible and in charge of processing. This incident management must be updated, if it is not already, and incorporate the procedures to respond to the obligations arising from the GDPR.

In light of the risk of not adequately and properly destroying paper documents containing personal data, the lack of these measures is observed. They must also be subject to monitoring for compliance and effectiveness, as well as when the circumstances of the processing change, taking into account and considering, where applicable, any incident that may occur due to the data, the format, or the medium of its processing.

A proper guide for ensuring the measures related to destruction is to contract with a company in the field that has and applies the code of good practices on the secure destruction of confidential material. Consequently, it is considered that the established facts constitute an infringement, attributable to the Municipal Socialist Group La Nucia, for violation of Article 32 of the GDPR.

VII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

g) The breach, as a result of a lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of Article 32.1 of Regulation (EU) 2016/679."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

25/33

VIII

Article 34 of the GDPR.

Article 34 "Communication of a personal data breach to the data subject" of the GDPR establishes:

"1. When a personal data breach is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall communicate the breach to the data subject without undue delay.

2. The communication to the data subject referred to in paragraph 1 of this article shall describe in clear and plain language the nature of the personal data breach and shall contain at least the information and measures referred to in Article 33, paragraph 3, letters b), c), and d).

1. The communication to the data subject referred to in paragraph 1 shall not be necessary if any of the following conditions are met:

a) the controller has implemented appropriate technical and organizational protection measures and those measures have been applied to the personal data affected by the personal data breach, in particular those that render the personal data unintelligible to any person not authorized to access it, such as encryption;

b) the controller has taken further measures to ensure that the high risk to the rights and freedoms of the data subject referred to in paragraph 1 is no longer likely to materialize;

c) it would involve a disproportionate effort. In this case, a public communication or a similar measure shall be adopted to inform the data subjects in an equally effective manner.

4. When the controller has not yet communicated the personal data breach to the data subject, the supervisory authority, after considering the likelihood that such a breach will result in a high risk, may require the controller to do so or may decide that one of the conditions mentioned in paragraph 3 is met."

In this case, it has been established that the PSOE sent a communication by certified mail on May 12, 2022, to the 17 members of the Agrupación Socialista La Nucía. It justifies that these 17 individuals are the only ones of whom they were certain that the responsibility for the affected data lies with the PSOE.

However, the Municipal Socialist Group La Nucia has not communicated the security breach and its possible adverse effects to the affected individuals, nor has it publicly warned of the detected incident. Among the documentation found, the existence of at least the following types of personal information under the responsibility of the PSOE is confirmed: Voter rolls of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/33

the following electoral processes: Municipal elections of 2007, 2011, and 2019, European elections of 2004, 2009, and 2014, General elections of 2015, 2016, 2019, Membership records with ID numbers and other personal data, Photocopies of ID cards of the members, Membership fee charges with bank account numbers.

Based on the number of affected subjects and the categories of data subject to access, it is considered that there is a high risk to the rights and freedoms of individuals, and consequently, the breach should have been communicated to all affected persons.

As a result, it is considered that the established facts constitute an infringement, attributable to the Municipal Socialist Group of La Nucia, for violation of Article 34 of the GDPR.

IX

Classification of the infringement of Article 34 of the GDPR.

The aforementioned infringement of Article 34 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 74 "Minor infringements" of the LOPDGDD indicates:

"Minor infringements of a merely formal nature referred to in Articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall be subject to a one-year statute of limitations, particularly the following:

"(...)"

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/33

ñ) The failure to communicate to the affected party a data security breach that poses a high risk to the rights and freedoms of the affected individuals, as required by Article 34 of Regulation (EU) 2016/679,

unless the provisions of Article 73 s) of this organic law apply.

(...)"

X

Unfulfilled obligation. Data processor.

Article 28 of the GDPR, "Processor," establishes:

"1. When processing is to be carried out on behalf of a controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under the law of the Union or of the Member States, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all necessary measures in accordance with Article 32;

d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, for the controller to comply with its obligation to respond to requests for exercising the rights of data subjects laid down in Chapter III;

f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

28/33

g) at the choice of the controller, will delete or return all personal data once the provision of the processing services has ended, and will delete existing copies unless the retention of personal data is required under Union or Member State law;

h) will make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to allow and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor will immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

4. When a processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 will be imposed on this other processor, through a contract or other legal act established in accordance with Union or Member State law, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures so that the processing is in compliance with the provisions of this Regulation.

If that other processor fails to comply with its data protection obligations, the initial processor will remain fully liable to the controller for compliance with the obligations of the other processor.

5. The adherence of the processor to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article.

6. Without prejudice to the controller and the processor entering into an individual contract, the contract or other legal act referred to in paragraphs 3 and 4 of this article may be based, in whole or in part, on the standard contractual clauses referred to in paragraphs 7 and 8 of this article, including when they are part of a certification granted to the controller or processor in accordance with Articles 42 and 43.

7. The Commission may establish standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the examination procedure referred to in Article 93, paragraph 2.

8. A supervisory authority may adopt standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the consistency mechanism referred to in Article 63.

9. The contract or other legal act referred to in paragraphs 3 and 4 will be in writing, including in electronic format.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
29/33

10. Notwithstanding the provisions of Articles 82, 83, and 84, if a data processor infringes this Regulation by determining the purposes and means of processing, they shall be considered responsible for the processing in relation to that processing."

In accordance with the provisions of Article 28 of the GDPR, the data controller and the data processor must regulate the processing of data in a contract or legal act that binds the processor to the controller; that contract or legal act must establish the object, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, the obligations and rights of the controller, etc. The actions taken have demonstrated that a moving and transport company was contracted to transfer the documentation from the headquarters of the Municipal Socialist Group of La Nucia to the Ecopark and that the contract with this company was made through WhatsApp conversations. That is to say, no type of data processing agreement was signed for the destruction or purging of the documentation, but rather it was trusted that the moving and transport company would transfer the documentation to the Ecopark, although there is no record of subsequent confirmation of the destruction by them. The moving contract is not a data processing agreement but a type of transport contract whose object, definition, nature, and responsibilities are legally regulated.

Therefore, regarding this contracting, it is not evident that all the requirements set forth in Article 28 of the GDPR are met, which, for data processing by a data processor, implies taking responsibility for the destruction of documents.

It is also not evidenced that complete technical and organizational measures have been established in accordance with current regulations that enable the guarantees of data security safeguards, specifically in the area of document destruction security.

Consequently, it is considered that the established facts constitute an infringement attributable to the Municipal Socialist Group of La Nucia for violating Article 28 of the GDPR.

XI

Classification of the infringement of Article 28 of the GDPR.

The aforementioned infringement of Article 28 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a

maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of Regulation (EU) 2016/679.

XII

Sanction

Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

k) The parliamentary groups of the General Courts and the Autonomous Legislative Assemblies, as well as the political groups of Local Corporations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/33

measures that should be adopted to cease the conduct or to correct the effects of the infringement that may have been committed.

The resolution will be notified to the responsible party or data processor, to the hierarchical body to which they depend, if applicable, and to the affected parties who qualify as interested parties, if applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, as applicable, to the analogous institutions of the autonomous communities.

In the present case, based on the solid evidence available according to the proven facts in this

sanctioning procedure, it is deemed appropriate to sanction the Municipal Socialist Group La Nucia with a warning for the infringement of Article 5.1.f) of the GDPR, for the infringement of Article 32 of the GDPR, for the infringement of Article 34 of the GDPR, and for the infringement of Article 28 of the GDPR, due to the lack of diligence in implementing appropriate security measures resulting in a breach of the principle of confidentiality, for failing to communicate to the affected parties a data security breach that poses a high risk to their rights and freedoms, as well as for not having signed any type of data processing agreement for the destruction or purging of documentation.

XIII

Adoption of measures

The text of the resolution establishes what the committed infringements were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures must be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data processor who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

32/33

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the MUNICIPAL SOCIALIST GROUP LA NUCIA, with NIF V42506683:

- For an infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR, a warning sanction.
- For an infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR, a warning sanction.
- For an infringement of Article 34 of the GDPR, classified in Article 83.4 of the GDPR, a warning sanction.
- For an infringement of Article 28 of the GDPR, classified in Article 83.4 of the GDPR, a warning sanction.

SECOND: NOTIFY this resolution to the MUNICIPAL SOCIALIST GROUP LA NUCIA.

THIRD: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/33

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es